



GiftUp — Privacy Policy

Effective Date: 17 September 2025

Domain: giftup.tech

Contact: info@giftup.tech

Operator (Türkiye): SAFIR GLOBAL KARA DENİZ TASIMACILIGI İC VE DİS TİC. LTD. ŞTİ., Rize, Türkiye

This Privacy Policy ("Policy") explains how GiftUp ("GiftUp," "we," "us," or "our") collects, uses, discloses, and protects information when you access our website, applications, smart contracts, and related services (the "Services"). GiftUp operates in Türkiye and complies with applicable Turkish privacy laws (including **KVKK**) as well as internationally recognized standards such as **GDPR** where relevant.

1. Introduction

GiftUp is a tokenized gifting and loyalty platform that enables merchants to issue blockchain-based gift assets and users to receive, hold, redeem, and transfer those assets. While parts of our infrastructure rely on public blockchains (currently TRON), GiftUp is committed to protecting personal data that we process as a data controller and to handling blockchain-specific data transparently.

By using our Services, you acknowledge that certain information is processed by GiftUp off-chain (e.g., account details, support communications) and certain information is recorded **on-chain** (e.g., wallet addresses, transaction hashes), which by design may be publicly accessible and technically immutable. This Policy outlines what we collect, why we collect it, the lawful bases we rely on, how long we retain it, and your rights.

2. Scope of this Policy

This Policy applies to:

- The **giftup.tech** website, web application, and mobile applications;
- Merchant dashboards, developer portals, and APIs;
- GiftUp smart contracts deployed on supported blockchains (initially **TRON**) including, without limitation, GFT smart-contract components (currently at **THXzL34gEr3QXRBpkWRAH8XwtvjYAeVFNf**), and any successor or ancillary contracts;
- Official communication channels and customer support.

This Policy covers data relating to **end users, merchant representatives, partners, and visitors** ("you"). It does not apply to third-party websites, wallets, exchanges, or services that are not operated by GiftUp; those are governed by their own privacy terms.

3. Data Controller Information

For purposes of the Turkish Personal Data Protection Law (**KVKK**) and, where applicable, the EU General Data Protection Regulation (**GDPR**):

- **Data Controller:** SAFIR GLOBAL KARA DENIZ TASIMACILIGI IC VE DIS TIC. LTD. ŞTİ. ("GiftUp")
- **Registered Office:** Rize, Türkiye
- **Contact (Data Requests / DPO):** info@giftup.tech
- **Representative (if required under GDPR Article 27):** To be appointed and published on giftup.tech if/when we target data subjects in the EEA as a non-EEA controller for specific offerings.

GiftUp may also act as a **data processor** for certain merchant instructions (e.g., when processing end-customer data solely on behalf of a merchant's campaign). In

those cases, a separate data processing agreement (DPA) will govern roles and responsibilities.

4. Data We Collect

We collect the minimum data necessary to deliver the Services while supporting compliance, security, and user experience. Categories include:

4.1 Identity & Contact Data (provided by you)

- Name, email address, country/region, language preferences;
- Merchant company details and contact information;
- Support tickets and correspondence.

4.2 Verification & Compliance Data (where required)

- KYC/KYB information (e.g., date of birth, address, government-issued ID, proof of address, corporate registration and beneficial ownership);
- AML information (e.g., source-of-funds/source-of-wealth declarations);
- Screening outcomes (e.g., sanctions/PEP checks), processed by vetted providers.

4.3 Wallet & Blockchain Data

- Public wallet addresses, transaction hashes, token IDs, on-chain events (issuance, transfers, redemptions, staking, governance actions);
- Smart-contract interactions with GFT/NFTs and related contracts on TRON or other supported networks.

Note: blockchain data is public, append-only, and may be replicated globally by third parties outside of GiftUp's control.

4.4 Usage & Technical Data (collected automatically)

- Device information, operating system, browser type/version, screen size;

- IP address and approximate geolocation (city/country level);
- Log files, session identifiers, referral URLs;
- Interaction metrics (pages viewed, buttons clicked), error logs, performance telemetry.

4.5 Cookies & Similar Technologies

- Essential cookies for authentication and security;
- Preference cookies for language and UI settings;
- Analytics cookies (subject to consent where required).

4.6 Marketing & Communications Data (with consent)

- Newsletter subscriptions, event registrations, survey responses, preferences regarding communications.

We **do not** intentionally collect data from children under 18 and do not collect special categories of personal data (e.g., health, biometrics) except as minimally required for KYC photographs/ID scans via accredited providers.

5. How We Collect Data

5.1 Directly from You

- Account creation, merchant onboarding, presale participation, staking, governance participation, support requests, or newsletter sign-ups.

5.2 Automatically via the Services

- Through cookies, SDKs, and analytics tools that capture usage and technical telemetry necessary for security, performance, and product improvement.

5.3 From Third Parties

- **KYC/AML Vendors:** identity verification, sanctions/PEP screening, document validation;

- **Payment/On-Ramp Partners:** confirmation of fiat/crypto settlements;
- **Analytics & Security Partners:** aggregated metrics, anomaly and fraud detection.

5.4 From Public Blockchains

- When you interact with GiftUp smart contracts (e.g., **THXzL34gEr3QXRBpkWRAH8XwtvjYAeVFNF** on TRON), associated public data (wallet, transaction hash, token metadata pointers) may be collected, indexed, and displayed within our dashboards.

6. How We Use Personal Data (Purposes & Legal Bases)

We process data only where we have a valid legal basis under KVKK/GDPR and for clearly defined purposes:

6.1 Service Delivery & Account Management

- Enable core features (issuance, redemption, marketplace, staking, governance);
- Provide merchant tools (API, dashboard, analytics);
- Maintain accounts, preferences, and session integrity.
Legal Bases: Contract necessity; Legitimate interests (reliable, secure service).

6.2 Compliance (KYC/AML, Sanctions, Fraud Prevention)

- Verify identity and eligibility; detect and prevent fraud, abuse, or prohibited activity; comply with MASAK guidance and applicable AML/CTF rules.
Legal Bases: Legal obligation; Legitimate interests (platform integrity).

6.3 Security & Incident Response

- Monitor suspicious activity, protect against DDoS and exploits, investigate incidents, and ensure smart-contract and infrastructure security.

Legal Bases: Legitimate interests (security of networks and information); Legal obligation.

6.4 Product Analytics & Improvement

- Measure performance, identify usability issues, improve UX, and prioritize features; produce aggregated statistics that do not identify individuals.

Legal Bases: Legitimate interests (service improvement); Consent where required for non-essential cookies.

6.5 Communications

- Operational notices (service updates, transactional emails), customer support communications.

Legal Bases: Contract necessity; Legitimate interests (user engagement and support).

6.6 Marketing (Opt-In)

- Newsletters, product updates, event invitations, and promotional content tailored to your preferences.

Legal Bases: Consent (you can withdraw at any time).

6.7 Legal Defense & Claims

- Establish, exercise, or defend legal claims; respond to law enforcement or regulatory requests where legally required.

Legal Bases: Legitimate interests; Legal obligation.

Blockchain-Specific Note: Where processing involves **public blockchain data**, certain erasure/rectification rights may be limited by the technology's immutable nature. We will apply **privacy-by-design** principles (minimization, off-chain storage for personal identifiers, hashing/pseudonymization) to reduce personal data exposure on-chain.

13. Children's Data

GiftUp's Services are **not directed to individuals under the age of 18**.

We do not knowingly collect, store, or process personal data from minors. If we become aware that we have inadvertently collected data from a minor, we will take immediate steps to delete such information.

Parents or guardians who believe that a child has provided data to GiftUp may contact us at **info@giftup.tech** to request removal.

Participation in the GiftUp ecosystem, including presales or wallet interactions, is restricted to individuals of legal age in their jurisdiction.

14. Links to Third-Party Services

Our website and platform may contain links or integrations with third-party websites, exchanges, wallets, or other blockchain services.

These services are **not operated or controlled by GiftUp**, and we are not responsible for their privacy or security practices.

Examples include:

- Wallet providers (e.g., **TRONLink**, **Trust Wallet**);
- Cryptocurrency exchanges or payment gateways;
- Analytics and marketing partners;
- Merchant websites or affiliate promotions.

When you follow a third-party link or use an embedded service, their own privacy policies and terms of use apply.

We strongly recommend reviewing the privacy policies of each third-party service before providing any personal data or authorizing blockchain transactions.

15. Policy Updates

GiftUp may update this Privacy Policy periodically to reflect legal, technical, or business changes.

15.1 Notification of Changes

- Minor updates (e.g., editorial improvements) will be published on **giftup.tech/privacy** without direct notification.
- Material changes (e.g., new data uses, additional processors, new jurisdictional rules) will be communicated via email or platform notice prior to the effective date.

15.2 Effective Date

Each version of this Policy includes its publication date at the top of the document. Continued use of the Services after an update constitutes acceptance of the revised terms.

We encourage you to review this Policy periodically to remain informed about how we protect your information.

16. Contact Information

If you have any questions, concerns, or complaints about this Policy or the way we handle your data, you may contact our Data Protection Officer (DPO) using the following details:

Data Controller:

SAFIR GLOBAL KARA DENİZ TASIMACILIĞI İÇ VE DİŞ TİC. LTD. ŞTİ.
Rize, Türkiye

Email (Data Protection & Privacy):

 info@giftup.tech

Official Website:

 <https://giftup.tech>

Blockchain Reference:

TRON Smart Contract Address: **THXzL34gEr3QXRBpkWRAH8XwtvjYAeVFNF**

Supervisory Authority (Türkiye):

Kişisel Verileri Koruma Kurumu (KVKK)

<https://www.kvkk.gov.tr>

GiftUp will respond to verified data protection inquiries within a reasonable period, typically **within 30 days** of receipt.

17. Consent and Jurisdiction

By using GiftUp's website, applications, or smart contracts, you acknowledge that you have read, understood, and agreed to the terms of this Privacy Policy.

17.1 Consent

If data processing is based on your consent (for example, marketing communications or analytics cookies), you may withdraw it at any time by contacting us or using unsubscribe and cookie control options.

Withdrawal of consent will not affect the legality of processing carried out prior to withdrawal.

17.2 Jurisdiction & Dispute Resolution

This Policy and any disputes arising out of or relating to it shall be governed by and construed in accordance with the laws of the **Republic of Türkiye**.

Any disputes not resolved amicably shall be submitted to the **Istanbul Arbitration Center (ISTAC)**, in English or Turkish, as the parties may agree.

17.3 Language

This Policy is drafted in English for international readability. Translated versions may be provided for convenience; in the event of any discrepancy, the English version shall prevail.

Final Clause

GiftUp is built on trust, transparency, and compliance.

Protecting personal data is not merely a legal obligation — it is a core principle of our ecosystem's integrity.

By using GiftUp, you help shape a fairer, safer, and more transparent digital gifting economy.

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Operated by SAFIR GLOBAL KARA DENİZ TASIMACILIGI İC VE DİS TIC. LTD. ŞTİ.,
Rize, Türkiye.

For questions or concerns, contact: **info@giftup.tech**